VILLAGE COUNCIL REGULAR MEETING OF APRIL 24, 2015

The Village of Estero Council Regular Meeting was held on this date at the Estero Fire Rescue District Meeting Room, 21500 Three Oaks Parkway, Estero, Florida, with the following Council members present:

Nick Batos – Mayor, District 6
Howard Levitan – Vice-Mayor, District 2
Bill Ribble - District 1
Donald Brown - District 3
Katy Errington - District 4
Jim Boesch - District 5
Jim Wilson - District 7

The Mayor called the meeting to order at 10:00 am, followed by the Pledge of Allegiance to the flag.

ROLL CALL

Interim Village Manager Peter Lombardi called the roll; all members were present.

APPROVAL OF AGENDA

Mr. Ribble moved approval, seconded by Mr. Brown, called and carried unanimously.

COUNCIL BUSINESS

5(A) RESOLUTION – A Resolution Appointing Members to the Village of Estero Planning and Zoning Board and Determining Board Member Terms.

Interim Village Attorney Burt Saunders pointed out that Council members would be required to sign their names to the paper ballots. Following brief discussion, Mr. Ribble moved to draw the names of the elected candidates from a hat to assign the term lengths, seconded by Ms. Errington, called and carried. After the members completed the ballots, Attorney Saunders and Interim Village Manager, Mr. Lombardi tallied the votes; and announced the names of those who had received at least four votes:

Ryan Binkowski – 4 votes – 1-year term
David Crawford – 5 votes – 2-year term
Ned Dewhirst – 5 votes – 3-year term
Marlene Naratil – 7 votes – 1-year term
Jeffrey Maas – 5 votes – 2-year term
Roger Strelow – 5 votes – 3-year term
Leonard "Scotty" Wood – 5 votes – 3-year term

Mr. Brown moved acceptance of the selected candidates, seconded by Mr. Ribble, called and carried unanimously. Vice-Mayor Levitan nominated Scotty Wood as the Board Chairperson, seconded by Mr. Ribble. Ms. Errington nominated Roger Strelow, seconded by Mr. Boesch. After Mr. Wood came forward to yield to Mr. Strelow, the Levitan/Ribble motion was withdrawn. Mr. Wilson nominated Ryan Binkowski, seconded by Mr. Ribble. Mr. Strelow was selected via roll-call vote, with Mr. Ribble and Vice-Mayor Levitan voting for Mr. Binkowski; and Mr. Brown, Mayor Batos, Ms. Errington, Mr. Boesch, and Mr. Wilson voting for Mr. Strelow. At this time, the drawing was held to assign the respective terms as indicated above. Mr. Ribble moved approval of the term assignments, seconded by Ms. Errington, called and carried.

RESOLUTION NO. 2015-23

5(B) RESOLUTION – A Resolution Appointing Members to the Village of Estero Design Review Board and Determining Board Member Terms.

Vice-Mayor Levitan noted that, due to some issues regarding the ordinance requirement for local licensed architects, only six of the eight members would be elected at this meeting; and that an ordinance revision might be needed. Following Council discussion, there was consensus to direct staff to advertise for the possible change while the search continues for qualified candidates. After the members completed the ballots, Interim Village Attorney Burt Saunders and Interim Village Manager Mr. Lombardi tallied the votes; and announced the names of those who had received at least four votes. The drawing was then held to assign the respective terms as indicated:

Joe McHarris – 7 votes – 1-year term
Albert O'Donnell– 7 votes – 1-year term
William Prysi – 7 votes – 2-year term
Patti Whitehead – 6 votes – 2-year term
Gerald Simons – 6 votes – 2-year term
Barry Jones – 5 votes – 1-year term

Ms. Errington moved to adopt the resolution with those six names and specified terms, seconded by Mr. Brown, called and carried unanimously. Vice-Mayor Levitan nominated Albert O'Donnell as the Board Chairperson, seconded by Mr. Wilson. Mr. Boesch nominated William Prysi, seconded by Mayor Batos. Following brief discussion, Mr. O'Donnell was selected via roll-call vote, with Mayor Batos and Mr. Boesch voting for Mr. Prysi; and Mr. Ribble, Vice-Mayor Levitan, Mr. Brown, Ms. Errington, and Mr. Wilson voting for Mr. O'Donnell. Brief discussion followed regarding dates and times for the first meetings of the two Boards. There was consensus that Vice-Mayor Levitan would work with the two Chairpersons, Attorney Saunders, and Special Counsel Nancy Stroud to coordinate meeting schedules.
RESOLUTION NO. 2015-24

5(C) RESOLUTION – A Resolution Approving Reimbursement to the Estero Council of Community Leaders (ECCL) of Funds Expended for the Village of Estero.

Mayor Batos described the items that were included in the total invoice of $7,600.26. He then called for public input; however, no one came forward to speak. Attorney Saunders clarified that the Council is given great latitude in spending money, and that the resolution had been drafted to indicate that these expenses were in the public interest. Mr. Ribble moved approval in the amount of $7,600.26, seconded by Mr. Brown. Following confirmation that this would be the final bill, the motion was called and carried, with Vice-Mayor Levitan dissenting.
RESOLUTION NO. 2015-25

5(D) RESOLUTION – A Resolution Amending the Zoning in Progress Resolution

Vice-Mayor Levitan briefly explained the reasons for the requested amendment. He added that he had spoken to some affected property owners who had no objections to the amendment. Following discussion regarding the objections of some developers, Laura DeJohn of Johnson Engineering, representing Lee Memorial Health System, confirmed the Vice-Mayor's report of his meeting with hospital representatives The Mayor called for public input; and the following individuals came forward to speak:

South Lee County Hospital Co-Chair, Don Eslick
Estero Chamber of Commerce President, Jeff Maas
Rapallo resident and local developer, Jim Wallace

Mr. Brown moved approval, seconded by Vice-Mayor Levitan, called and carried 5-2 via roll call vote with Mr. Boesch and Ms. Errington dissenting.
RESOLUTION NO. 2015-26

<u>PUBLIC INPUT ON NON-AGENDA ITEMS</u>

The Mayor called for public input; however, no one came forward.

COUNCIL / MANAGER/ATTORNEY COMMUNICATIONS AND FUTURE AGENDA ITEMS

Council Members' Comments:
Vice-Mayor Levitan thanked the Council for working to pass land use ordinances and resolutions to prevent delays in development; and stated that he looked forward to having the appointed Boards up and running to deal with the growing list of land use cases.

Mr. Boesch reported that he had given a list to the Village Manager of those who would provide the invocations in May.

Mr. Wilson noted that he had requested excused absences from the meetings of June 3 and June 12, 2015; and brief discussion of the Village Charter requirements followed. There were no objections to the request.

Interim Village Manager's Comments:
Interim Village Manager Peter Lombardi commended the Council for the successful brief voting process.

Interim Village Attorney's Comments:
Interim Village Attorney Burt Saunders reported that the House was considering both local bills today, and that ~~there was~~ nothing ~~that~~ should interfere with passage. He pointed out that, although the ex-parte communication ordinance had been changed to allow Council members to meet with developers, whether to do so remained the personal choice of each member; and briefly reviewed the legal requirements.

ADJOURN

The Mayor adjourned the meeting at 11:09 am.

ATTEST:

By: _____

Interim Village Clerk

VILLAGE OF ESTERO, FLORIDA

By: _____

Mayor

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The Mayor called the meeting to order at 10:00 am, followed by the Pledge of Allegiance to the flag.

ROLL CALL

Interim Village Manager Peter Lombardi called the roll; all members were present.

APPROVAL OF AGENDA

Mr. Ribble moved approval, seconded by Mr. Brown, called and carried unanimously.

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South Lee County Hospital Co-Chair, Don Eslick
Estero Chamber of Commerce President, Jeff Maas
Rapallo resident and local developer, Jim Wallace

Mr. Brown moved approval, seconded by Vice-Mayor Levitan, called and carried 4-3 via roll call vote with Mayor Batos, Mr. Boesch and Ms. Errington dissenting.
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